



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8094 (EXTENSION)
ORIGINAL November 30, 1978

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8094 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

En *Suzanne Hegopett*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 20 1992

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Milport Chemical Company
Milwaukee, WI

May 5, 1992



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 8094

1. Milport Chemical Company, Milwaukee, Wisconsin, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain oxidizers and corrosive liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of corrosives in a DOT Specification 56 tank where a DOT Specification 60 tank is permitted by the regulations and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Milport Chemical Company's application dated June 28, 1978, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
3. HAZARDOUS MATERIALS. Ammonium hydroxide, 29.4%; sodium hydroxide, 50%; hydrochloric acid, 31.45%; nitric acid, 67.2%; phosphoric acid, 85%; sulfuric acid, 93.19%.
4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium hydroxide; sodium hydroxide, solution; hydrochloric acid; nitric acid, phosphoric acid, sulfuric acid, as appropriate .
5. REGULATION AFFECTED. 49 CFR 173.245, 173.249, 173.263, 173.268, 173.272.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed: DOT Specification 56 portable tanks having a capacity of not more than 150 gallons and a maximum gross weight of not more than 1800 pounds complying with drawings submitted by Milport Chemical Company or Hydrite Chemical Company on file with the Office of Hazardous Materials Regulation (OHMR) and the following:
 - (a) Constructed of 10 gauge mild steel - for ammonium hydroxide, sodium hydroxide and sulfuric acid.
 - (b) Constructed of 10 gauge Type 316 stainless steel-for nitric acid.
 - (c) Constructed of 10 gauge mild steel lined with rubber for hydrochloric acid.
 - (d) Constructed of 10 gauge mild steel lined with PVC for phosphoric acid.

8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- b. No new construction is authorized.
- c. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8094" unless tanks are permanently marked "DOT-E 7625" in which case the latter number may be used.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. October 25, 1980.

Issued at Washington, D.C.:

Douglas B. Roberts
Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

11/30/78
(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U. S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: B of E, FHWA.